CFI 041/2024 Anastasiia Denisova v (1) Aleksei Galtcev (2) Realiste Holding Ltd

DECEMBER 17, 2025 COURT OF FIRST INSTANCE - ORDERS

Claim No. CFI 041/2024

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

IN THE COURT OF FIRST INSTANCE

BETWEEN

ANASTASIIA DENISOVA

Claimant/Respondent

and

(1) ALEKSEI GALTCEV

(2) REALISTE HOLDING LTD

Defendants/Appellants

ORDER WITH REASONS OF H.E. CHIEF JUSTICE WAYNE MARTIN

UPON the Order with Reasons of H.E. Justice Sapna Jhangiani dated 15 May 2025 (the "Order of 15 May 2025")

AND UPON the Order with Reasons dated 26 May 2025 of H.E. Justice Sapna Jhangiani immediately assessing the Claimant's costs in relation to the preliminary issue on a standard basis (the "Costs Order")

AND UPON the Order with Reasons of H.E. Justice Sapna Jhangiani dated 15 August 2025 refusing the Defendants' Appeal Notice dated 9 June 2025 seeking permission to appeal the Order of 15 May 2025 and the Costs Order (the "Order of 15 May 2025")

AND UPON the First Defendant's Permission to Appeal Application dated 4 September 2025 seeking permission to appeal the Order of 15 May 2025 (the "Renewed Application")

AND UPON the First Defendant's Application No. CFI-041-2024/6 dated 8 October 2025 seeking an extension of time to file a Reply to the Respondent's Response to the Renewed Permission to Appeal Application (the "Application for an Extension of Time")

AND UPON the Order with Reasons of H.E. Chief Justice Wayne Martin dated 8 October 2025 (the "Order")

AND UPON the First Defendant's Application No. CFI-041-2024/8 dated 17 October 2025 seeking permission to apply to re-open the Order (the "Application to re-open the decision")

IT IS HEREBY ORDERED:

1. The Application for an Extension of Time is dismissed.

2. The Application to re-open the decision is dismissed.

3. There shall be no order as to costs.

Issued by:

Delvin Sumo
Assistant Registrar
Date of Issue: 17 December 2025
At: 10am

SCHEDULE OF REASONS

Summary

1. There are two applications before the Court. The first is an Application for an Extension of Time within which to file a Reply to the Respondent's Response to the Renewed Application for Permission to Appeal. The second is an application to re-open the decision to dismiss the Renewed Application for Permission to Appeal. For the reasons which follow, both Applications lack any substance and must be dismissed.

Relevant procedural history

2. On 15 May 2025, judgment was entered in favour of the Respondent/Claimant against the Defendants/Appellants on a preliminary issue and the Appellants were ordered to pay the Respondent's costs of the trial of that issue.

3. On 9 June 2025, the Appellants filed a Notice of Appeal from that decision. Their Application for Permission to Appeal was dismissed by the Trial Judge on 15 August 2025.

4. On 4 September 2025, the Appellants made a Renewed Application for Permission to Appeal to the Court of Appeal (the "Renewed Application").

5. The Respondent filed a skeleton argument in opposition to the Renewed Application. There is a controversy as to when the skeleton was effectively filed. It was first lodged electronically on 19 September 2025, although there were technical difficulties in relation to the receipt of the document, and also difficulties in relation to the corruption of some of the documents that were filed with the skeleton. At all events, the Appellants accept that the skeleton and all supporting documents were filed no later than 23 September 2025 and came to their attention on that day.

6. Accepting the Appellants' position in this respect (and noting that it is contentious), the last day for service of any Reply to the Response was 7 October 2025. The Appellants contend that they sought advice from the Registry of the Court as to whether that was in fact the last date for service of their Reply. On the evidence produced in support of the Applications, the earliest email to the Court addressing that topic appears to have been sent on 6 October 2025.

7. At all events, the Appellants did not serve any Reply by 7 October 2025. Instead, at around 1.00pm on 8 October 2025 they lodged the first application referred to above – namely, the Application for an Extension of Time within which to serve their Response to the Reply.

8. At 3.00pm on 8 October 2025, my orders with reasons dismissing the Renewed Application were published. Obviously, I was unaware of the Application for an Extension of Time within which to serve a Reply at the time the decision was published.

9. In my reasons for dismissing the Renewed Application I held that:

(a) None of the grounds raised any issue of principle;

(b) None of the grounds suggested that the Judge had misused the advantage which she enjoyed as the Judge at first instance in a way which would justify appellate intervention;

(c) None of the grounds cast any doubt upon the Judge's carefully reasoned analysis which was entirely consistent with legal principle and which demonstrated a logical and rational approach to the issue which had to be determined; and

(d) Viewed individually, none of the grounds had any prospect of success.

10. In the context of the present Applications, it is significant that my reasons make no reference to any submissions made by the Respondent. Rather, my reasons are concerned entirely with the inherent deficiencies in the grounds of appeal, that is to say, deficiencies which were evident from a consideration of the grounds of appeal and the skeleton argument served in support of those grounds. Put in other words, my decision was not influenced by my consideration of the Response provided by the Respondent.

11. On 17 October 2025, the Appellants applied to re-open my decision to dismiss the Renewed Application.

The Application for an Extension of Time within which to serve the Reply

12. The Appellants accept that if their view of the date upon which the Response was filed is correct, the last day within which they were permitted to serve a Reply to that Response was 7 October 2025. However, they did not file any Reply within that period. The reason given for that failure is that they assert that they were:

> "Awaiting confirmation from the Registry about the service status and any revised deadline in light of the irregularities."

13. Leaving to one side the evidence which would suggest that the first occasion upon which the issue of the time for reply was raised with the Registry in writing was on 6 October 2025, and assuming that there were earlier communications with the Registry on that topic, the failure of the Registry to provide a response to the Appellants' query provides no justification for a deliberate failure to file the Reply within the period for which the Appellants contended.

14. If there was any uncertainty arising from communications with the Registry, obviously the appropriate course was to file the Reply within the period for which the Appellants' contended and, if there was any issue with respect to the date upon which it was filed, apply for an extension of time *nunc pro tunc* (i.e. retrospectively). However, the Appellants did not take that course. Rather, they waited for the period to expire and then applied for an extension of time.

15. Put in other more general terms, any uncertainties arising from communications with the Registry provided no justification for a deliberate failure to file the Reply within the time which the Appellants considered was available to them.

16. For these reasons, if the Application for an Extension of Time had been brought to my attention before my orders dismissing the Renewed Application were published, I would have dismissed it.

17. There is no reason why I would take any different view now. To the contrary, the grant of an extension of time would be pointless unless the application to re-open the decision dismissing the Renewed Application is successful. As there is a fundamental flaw in that Application, other than its dependence upon the success of the Application to Extend Time, there is an additional reason why the Application for an Extension of Time must be dismissed.

The application to re-open the decision dismissing the Renewed Application

18. The dismissal of the Renewed Application amounted to the final determination of the appeal. Accordingly, the application to re-open that decision is governed by RDC 44.154 which provides:

> "The Court of Appeal or the Court at First Instance will not re-open a final determination of any appeal unless:
>
> (1) It is necessary to do so to avoid real injustice;
>
> (2) The circumstances are exceptional and make it appropriate to reopen the appeal; and
>
> (3) There is no alternative effective remedy."

19. The Appellants contend that it is necessary to re-open the decision to dismiss their Renewed Application because they were deprived of the opportunity to file a Reply to the Response.

20. The first obstacle in the path of that proposition is that it assumes that the Appellants were entitled to an extension of time within which to file a Reply which they had deliberately chosen not to file within the time which they believed to be applicable. For the reasons given above, that assumption has no foundation. Accordingly, the Appellants have not been deprived of anything, as it was their decision to not file their Reply within time.

21. Moreover, and quite independently of the issues relating to the extension of time, the decision could only be re-opened if "it was necessary to do so in order to avoid real injustice".

22. In this context "real injustice" means something more than procedural irregularity, given the importance of appellate finality. Without attempting to prescribe what must be established in order to demonstrate the avoidance of "real injustice" it must at least involve establishing a reason to believe that the appeal might be decided differently if reopened.

23. The Appellants have made no attempt to address that issue in support of their application to re-open the appeal. In particular, they have not provided any indication of what might have been included in their Reply, if they had chosen to file it within time, and which might have had an impact on the outcome of the Renewed Application. Rather, the Court is left to speculate as to what might have been included in the Reply and perhaps to assume that it might have affected the outcome.

24. In the circumstances of this case, there is no basis for any such speculation. The grounds of appeal were evidently hopeless on their face. As no reliance was placed upon the Response in the determination of the Renewed Application, it is inconceivable that anything that might have been said in reply to the Response might have made any difference to the outcome.

25. For these reasons, the Application to re-open the dismissal of the Renewed Application must be dismissed.

26. As the Respondent took no step in relation to these Applications, there is no basis for an order for costs in her favour. Accordingly, there will be no order as to costs.